



United States
Attorney's Office
District of Massachusetts



California Company and Three Employees Sentenced for Conspiring to Sell Misbranded N95 Masks to Hospital in Early Months of COVID-19 Pandemic

Wednesday, November 19, 2025

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – A California company, and three individuals who owned and managed the company, were sentenced last week in connection with the shipment of facemasks that were misbranded as N95 respirators during the earliest phase of the COVID-19 pandemic in the United States.

Advoque Safeguard LLC was sentenced by U.S. District Court Judge Myong J. Joun to one year of probation. The company was also ordered to pay a fine of \$700,000. Jason Azevedo, 34, of Cedar Creek, Texas and Andrew Stack, 53, of Santa Cruz, Calif. were each sentenced to one year of probation and ordered to pay a fine of \$100,000. Paul Shrater, 52, of Simi Valley, Calif. was sentenced to six months' probation and ordered to pay a fine of \$100,000.

In October of 2024, Advoque Safeguard pleaded guilty to one count of conspiracy to introduce misbranded devices into interstate commerce with intent to defraud or mislead. Azevedo, Shrater and Stack pleaded guilty to one count of introduction of misbranded devices into interstate commerce.

A second company, JDM Supply LLC (JDM), and two individuals, Daniel Motha and Jeffrey Motha, also pleaded guilty and were sentenced [in April 2025](#) to one year of probation. Each were also ordered to pay a \$9,500 fine. Jason Colantuoni also pleaded guilty to conspiracy to commit price gouging and in July 2025 was sentenced to time-served and a fine of \$3,000.

In the spring of 2020, during the earliest phase of the COVID-19 pandemic in the United States, ASG and JDM conspired to ship facemasks that were misbranded as National Institute of Occupational Safety and Health (NIOSH)-approved, N95 respirators. One hospital accepted and paid for hundreds of thousands of purported N95 masks that were manufactured by ASG and sold to the hospital by JDM.

The hospital did not use the masks, which were eventually returned to ASG. ASG and JDM misled the hospital into believing that the ASG masks were NIOSH-approved N95s, when in fact they were not. In August 2020, a NIOSH lab tested a sample of the ASG masks that had been shipped to the hospital and all 10 ASG masks tested between 83.94% and 93.24% filtration efficiency and thus fell under the 95% minimum level of filtration efficiency required for N95 respirators.

United States Attorney Leah B. Foley; Ketty Larco-Ward, Inspector in Charge of the U.S. Postal Inspection Service, Boston Division; Fernando McMillan, Special Agent in Charge of the Food and Drug Administration, Office of Criminal Investigations; Christopher Algieri, Special Agent in Charge of the U.S. Department of Veterans Affairs Office of Inspector General, Northeast Field Office; Ted E. Docks, Special Agent in Charge of the Federal Bureau of Investigation, Boston Division; and Michael J. Krol, Special Agent in Charge of Homeland Security Investigations in New England made the announcement today. Assistant U.S. Attorney Mackenzie Queenin prosecuted the case.

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